

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
NADINE MCDANIEL and IRENE MCDANIEL

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. ANTHONY AQUILINO, TAX REG.#956392,
P.O. DOMINIC ALONGI, TAXREG 951497,
SGT. DENNIS MAXIM, TAX REG. 949285,
SGT. MALDONADO TAX REG# 94203
AND OTHER JOHN AND JANE DOE POLICE
OFFICERS OF THE CITY OF NE YORK,

Defendants
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INDEX No. 719908/2018

AMENDED SUMMONS

Plaintiff designates Queens
County as the place of trial

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on plaintiffs' Attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATE: Forest Hills, NY
February 26, 2020


EDWARD ZALOB, ESQ.,
Attorney for Plaintiffs
118-21 Queens Blvd., Ste #504
Forest Hills, NY 11375

Defendant's Addresses

THE CITY OF NEW YORK
100 Church Street
New York, NY

P.O. DOMINIC ALONGI, TAX REG 951497,
SGT. DENNIS MAXIM, TAX REG. 949285,
SGT. MALDONADO TAX REG# 94203

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
NADINE MCDANIEL and IRENE MCDANIEL

Plaintiff,

-against**INDEX No. 719908/2018****AMENDED
VERIFIED COMPLAINT**THE CITY OF NEW YORK,
P.O. ANTHONY AQUILINO, TAX REG.#956392,
P.O. DOMINIC ALONGI, TAXREG 951497,
SGT. DENNIS MAXIM, TAX REG. 949285,
SGT. MALDONADO TAX REG# 94203
AND OTHER JOHN AND JANE DOE POLICE
OFFICERS OF THE CITY OF NE YORK,Defendants
-----X

The Plaintiffs, by their attorney Edward Zaloba, Esq., complaining of the defendants, respectfully allege, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 USC §1983 and 42 USC §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States. Plaintiff also asserts supplemental state law tort claims.

PARTIES

2. Plaintiffs are citizens of the United States, and at all relevant times were residents of the County of Queens, City and State of New York.

3. Defendant City of New York (hereinafter "City") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendants Aquilino, Alongi, Maxim, Maldonado and John and Jane Does 4-8, are police officers within the 101st precinct. They are sued in their individual, supervisory and

official capacities.

FACTS

5. On December 16, 2016, plaintiffs were lawfully inside their home at 11-10 Beach Channel Drive, Queens, New York.

6. Plaintiff Nadine is disabled and her daughter plaintiff Irene were residents at said location.

7. Both plaintiffs had committed no crimes nor were they accused of committing any crime.

8. That the defendant officers' prior investigation had revealed that the alleged weapon belonged to a male name Ray who was residing at said location.

9. Defendants went inside their home and started searching the premises.

10. Defendants allegedly obtained consent from plaintiff Nadine. However, plaintiff Nadine was incapacitated and not in any shape or form able to consent to search her home.

11. Defendants allegedly found a weapon inside a bedroom under a mattress; however, it was nowhere near either of the plaintiffs, and both plaintiffs had neither possession, control or custody over the location. The gun was not found in either of the plaintiffs' rooms, but rather a male's bedroom.

12. The circumstance of the defendants' prior investigation in conjunction with the facts of said search clearly indicates that the plaintiffs were arrested without probable cause.

13. Both plaintiffs were transported to the 101st precinct and charged with serious crimes.

14. Plaintiff Nadine protested that she needed medical attention, and that both her and her daughter were innocent.

15. Defendants ignored their pleas.

16. Plaintiffs were thereupon transported to Central Bookings.

17. Because of defendants' failure to provide timely medical attention to plaintiff Nadine, plaintiff Nadine passed out.

18. After about 48 hours in custody, the plaintiffs were presented before a judge and released ROR.

19. The plaintiffs were required to appear in Court on approximately 9-10 dates, the case was finally presented to the grand jury where plaintiff Nadine McDaniel testified, the grand jury returned a no true bill, therefore refusing to indict either of the plaintiffs.

20. Shortly thereafter on October 2, 2017, the criminal case against both plaintiffs were dismissed and sealed.

21. That on or about November 1, 2018, a notice of claim was served on the City on behalf of Nadine McDaniel. She testified at a 50H hearing on April 5, 2018. That more than thirty (30) days have elapsed since the Notice of Claim has been served upon the defendant and the defendants have neglected or refused to make any adjustments or payments thereof.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS
(Violation of NYS and NYC Human and Civil Rights Law)

22. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

23. Defendant's conduct herein denied plaintiffs the equal protection of the law, discrimination against them and caused them injuries.

24. As a result, plaintiffs' rights under NYS and NYC were violated.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Negligence Screening, Hiring and Retention under the laws of the State of New York)

25. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

26. Upon information and belief, Defendant City failed to use reasonable care in the screening, hiring, and retention of the aforesaid individual Defendants who conducted and participated in the violation of plaintiffs' rights.

27. As a result, plaintiffs suffered injuries.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Negligence under the Laws of the State of New York)

28. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

29. Plaintiffs' physical and emotional injuries herein were caused by the carelessness, recklessness and negligence of the Defendants and their employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Respondent Superior liability under the laws of the State of New York)

30. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

31. Defendant City is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein that caused Plaintiffs' injuries.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Malicious Abuse of Process under the laws of the State of New York)

32. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

33. As a result of the foregoing, Plaintiffs were subjected to malicious abuse of process by the defendants which led to them being dragged through the Court, arrests, away from each other, incurring unnecessary expenses simply for the defendants to generate arrests, meet quotas and gain financially through overtime for the preposterous scheme.

34. As a result of Defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS

(Intentional and Negligent Infliction of Emotional Distress under the laws of New York)

35. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

36. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

37. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant City.

38. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant City.

39. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiffs.

40. As a result of the aforementioned conduct, plaintiffs suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS,

(False Arrest -Unlawful Seizure under the 4th Amendment)

41. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

42. There was no probable cause for the arrest, unlawful seizures or the continued incarceration of each plaintiff.

43. As such these defendants' actions resulted in violations of both plaintiffs' constitutional rights under the Fourth and Fourteenth Amendments.

44. As a result of the aforementioned conduct of defendants, plaintiffs' constitutional rights to be free from unreasonable seizure were violated and they sustained physical, economic and emotional injuries.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS,

(Deprivation of Rights under the Fourteenth Amendment-Due Process)

45. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

46. The Defendants' conduct herein was an abuse of executive power to clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

47. These actions by Defendants deprived the substantive and procedural due process afforded to the Plaintiffs and was in violation of Plaintiffs' constitutional rights under the Fourth and Fourteenth Amendments.

48. As a result of the foregoing, plaintiffs were deprived of their substantive rights to familial association under the Due Process Clause causing them economic and severe and permanent emotional and physical injuries.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFFS,

(Malicious Prosecution)

49. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

50. Defendants knew that by filing false charges against Plaintiffs, they would very likely be held in custody, have to endure numerous court appearances, and the expense of hiring an attorney and despite such belief, the Defendant fabricated evidence that plaintiffs engaged in serious criminal activities.

51. Due to defendants' actions, plaintiffs were deprived of life and liberty interest.

52. Defendants' actions constituted malicious prosecution because they knowingly filed false and unsubstantiated charges against plaintiffs, failed to drop them, or inform the District Attorney's office of the falsity of the charges and instead pursued the charges knowing full well that the charges were not only false but trumped up, and fabricated.

53. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time

and they were subjected to violations of their state and federal rights.

54. The defendant Aquilino and other defendants lacked probable cause to both arrest plaintiffs as well as to continue to prosecute plaintiffs; nevertheless, Aquilino and other defendants were actively involved in a continuation against the plaintiffs.

55. Notwithstanding the fraudulent conduct of defendants, the criminal proceedings were terminated in favor of plaintiffs.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLANITIFFS
(Denial of Right to Fair Trial)

56. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

57. Defendants fabricated evidence and testimony that plaintiffs had engaged in a criminal activity.

58. Defendants' had no legal or factual basis for the outrageous allegations against plaintiffs.

59. Defendants falsified police paperwork, affidavits, other case intake and prosecution initiation sheets to arrest plaintiffs.

60. Defendants' actions denied plaintiffs the right to a fair trial.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLANITIFFS
(First Amendment-Retaliation)

61. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

62. Plaintiffs were well within their right to not let Defendants inside their home.

63. Plaintiffs had a privacy interest.

64. Plaintiffs engaged in protected conduct.

65. Defendants told plaintiffs that they needed information about "guns". Plaintiffs did not have any such information.

66. In an effort to force plaintiffs to divulge information, plaintiffs did not have, defendants threatened to call ACS on plaintiffs' children and grand-children.

67. Plaintiffs had no information to give to the defendants.

68. As retaliation, defendants falsely called ACS on plaintiffs and reported child abuse against the plaintiffs.

69. As a result,

defendants violated plaintiffs' rights secured under the First and Fourteenth Amendments and they suffered injuries.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLANITIFFS

(Deliberate Indifference/Negligence to Medical Needs)

68. Plaintiffs repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

69. Defendants ignored plaintiffs' pleas for medical attention.

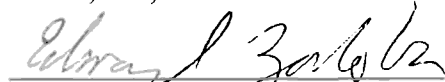
70. As a result, plaintiff Nadine McDaniel, suffered severe medical condition causing her to pass out.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

- A. Full and fair compensatory damages in an amount of One Hundred Thousand Dollars (\$100,000.000) for each and every cause of action for each Plaintiff against defendants (individually or collectively) or as determined by a jury;
- B. Punitive damages in an amount to be determined by a jury;
- C. Reasonable attorney's fees and the costs, expenses and disbursements of the action; and
- D. Such other and further relief as appears just and proper.

Dated: Queens, New York
February 26, 2020

Yours, etc.,



EDWARD ZALOB, Esq.

Attorney for Plaintiffs

118-21 Queens Boulevard, Ste. 504

Forest Hills, New York 11375

(718) 261-3000

ATTORNEY VERIFICATION

STATE OF NEW YORK)
)SS.
COUNTY OF QUEENS)

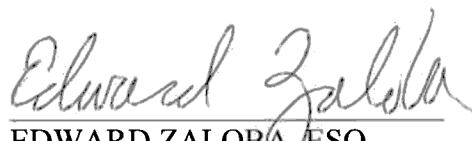
EDWARD ZALOB, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney of record herein; that I have read the foregoing AMENDED SUMMONS AND COMPLAINT and know the contents thereof, and upon information and belief, affirmant believes the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the plaintiff is that the plaintiff, NADINE MCDANIEL, is not currently in the County in which plaintiff's attorney maintains office.

The source of affirmant's information and the grounds for his belief are communications, papers, reports and investigations contained in plaintiff attorney's files.

Dated: Forest Hills, New York
Feb 26, 2020


EDWARD ZALOB, ESQ.,
Attorneys for Plaintiff
118-21 Queens Boulevard, Ste. 504
Forest Hills, NY 11375

VERIFICATION

STATE OF NEW YORK)
)SS.:
COUNTY OF QUEENS)

IRENE MCDANIEL, being duly sworn, deposes and says:

I am the plaintiff in this matter; I have read the Second Amended Complaint and know its contents, it is true to my knowledge except those matters that I have no personal knowledge but have been explained to me, and as to those matters, I believe it to be true.


IRENE MCDANIEL

Sworn to before this 26
Day of February 2020


Notary Public **EDWARD ZALOGA**
Notary Public, State of New York
NO. 02ZA-5083655
Qualified in Queens County
Commission Exp. September 15, 2022